

PUBLIC OFFER AGREEMENT

This Public Offer (hereinafter — the “Offer”) is an official proposal by the Contractor to conclude an agreement for the provision of information and consulting services on the terms defined below with any legally capable individual who accepts this Offer in the manner specified in this Public Offer.

Before accepting the Offer, the User must review this Offer and the description of the selected Course and participation Package, including their composition, price, language of materials, access period, technical requirements, and refund terms.

TERMS AND DEFINITIONS

- **Public Offer (Offer)** — an official public proposal by the Contractor, addressed to an unlimited number of legally capable individuals, to conclude an Agreement for the provision of information and consulting services.
- **Agreement** — the agreement between the Contractor and the User, concluded electronically by Acceptance of this Offer without signing a separate document. The content of the Agreement consists of the terms of this Offer and the terms of the selected Course and Package, brought to the User’s attention when placing the order, in the version in effect at the time of Acceptance.
- **Contractor** — the business entity, the offeror under this Public Offer, that provides the information and consulting services in its own name and at its own expense on the basis of a license agreement concluded with the Author.
- **Author** — the individual rights holder of the collections of audiovisual works, access to viewing whose content is a component of the information and consulting services. The Author is not a party to this Agreement; references to the Author in this Offer relate to the procedure for providing Individual Consultations, as well as ownership of the intellectual property rights to the Courses.
- **User** — any legally capable individual (consumer) who has accepted the terms of this Offer in the manner established by this Agreement and purchases the relevant Package for personal needs unrelated to entrepreneurial activity, in compliance with the age and legal capacity requirements established by the Offer.
- **Site** — the website at <https://motophd.com>, including its language versions, on which information about the Courses and participation Packages, and the terms of their purchase, is published.
- **Information and Consulting Service** — a set of actions by the Contractor consisting of providing the User, for a fee, with access to view Digital Content (Course materials) through the Personal Account on the Platform, as well as organizing Individual Consultations by the Author (if provided for by the selected Package), aimed at satisfying the User’s informational needs regarding the improvement of motorcycle riding skills.
- **Digital Content (Course materials)** — data created and provided in digital form (video lessons, audio and video recordings, guides, methodological and practical materials, etc.), access to viewing which is granted to the User within the selected Package.
- **Course** — a structured set of materials, digital content (video lessons, guides, practical assignments, text and graphic materials, etc.) aimed at improving motorcycle riding skills, access to which is granted to the User after payment.
- **Package** — the purchase option for the Course selected by the User, which determines the composition of available Course materials, the term and conditions of access to them, the price, and the availability and scope of Individual Consultations. The terms of the Package are specified on the Site and brought to the User’s attention before payment.
- **Basic Package** — a Package that provides access to the Course Materials specified in its description without Individual Consultations.
- **Package with Feedback** — a Package that provides access to the Course Materials specified in its description and the conduct of Individual Consultations in the agreed scope.
- **Individual Consultation** — a personal consulting service in the form of a video call, which is included exclusively in the Package with Feedback and is provided by the Author.
- **Platform** — the information system used by the Contractor to provide Users with access to Course Materials.
- **Personal Account** — the User’s personal section on the specialized web platform, through which access to Course materials is provided.
- **Acceptance** — the full, unconditional, and unreserved acceptance by the User of all terms of this Offer by making payment for the selected Course through the Payment Service and confirming review by means of a checkbox.
- **Payment Service** — an authorized third-party payment tool connected on the Site (including WayForPay or others) that ensures the acceptance and processing of payments.

I. GENERAL PROVISIONS

- 1.1.** This Offer is a public proposal by the Contractor to conclude an Agreement on the terms specified herein, in accordance with Articles 641 and 642 of the Civil Code of Ukraine, and is addressed to an unlimited number of individuals, subject to the requirements and restrictions established by this Offer. The Agreement concluded by Acceptance of this Offer is public within the meaning of Article 633 of the Civil Code of Ukraine. Signing a separate document to conclude the Agreement is not required.
- 1.2.** The Offer is deemed accepted by the User from the moment payment is made for the selected Course through the Payment Service connected on the Site, provided the User has previously confirmed agreement with the terms of the Offer in the manner specified in clause 1.3. Acceptance means the full and unconditional acceptance by the User of the terms of this Offer.
- 1.3.** Before making payment, the User additionally confirms review of the terms of this Offer by a separate active action — independently marking the relevant box (checkbox) when placing the order.
- 1.4.** The minimum age of a User for independent Acceptance of this Offer is 18 years. Persons aged 14 to 18 may accept this Offer only with the prior consent of parents, adoptive parents, or guardians to enter into such a transaction. By performing Acceptance, such a User confirms the existence of the relevant consent or full civil legal capacity. The Contractor has the right to request appropriate confirmation of these circumstances to the extent necessary to verify the lawfulness of concluding the Agreement.
- 1.5.** This Offer does not apply, is not applicable, and creates no obligations for the Contractor with respect to persons who are citizens, subjects, or tax residents of states recognized under the legislation of Ukraine as an aggressor state or a state carrying out armed aggression against Ukraine, and/or who are included in lists of persons subject to sanctions of Ukraine, the European Union, the United States of America, or the United Nations.
- 1.6.** By accepting this Offer, the User unconditionally warrants and represents to the Contractor that they do not belong to any of the categories of persons specified in clause 1.5 of this Offer. If the Contractor determines that the User belongs to such persons, the Contractor has the right to unilaterally and immediately withdraw from the Agreement and cancel the User’s access to the Course without refunding the amounts paid.
- 1.7.** The Contractor has the right to unilaterally amend this Offer by publishing a new version on the Site, specifying the date it takes effect. The new version applies to agreements concluded after the date of its publication. To a Course already paid for, the version of the Offer and the

terms of the selected Package that were in effect and brought to the User's attention at the time of Acceptance shall apply. Subsequent changes to the Offer or to the Package description on the Site do not by themselves alter the terms of a previously concluded Agreement.

- 1.8. This Offer and the Course materials may be provided by the Contractor in Ukrainian, Russian, and English. By paying for the selected Course, the User confirms that they are aware of the language in which the content is provided and consents to receiving access to the Course in that language. In the event of discrepancies between the language versions of this Offer, the English-language text shall prevail.

II. SUBJECT OF THE AGREEMENT

- 2.1. The Contractor provides the User with paid access to the selected Course within the scope of the selected Package and ensures the conduct of Individual Consultations, if provided for by such Package, and the User pays for the selected Package under the terms of this Offer.
- 2.2. Performance under this Agreement consists of providing the information and consulting service, namely: access to view digital content (Course materials), and for the Package with Feedback — also the conduct of Individual Consultations. This Offer is not an educational agreement that provides for the issuance of a state-recognized education document, and is not an agreement to teach vehicle operation from scratch: the Courses are intended for persons who already possess basic motorcycle riding skills and aim to improve those skills.
- 2.3. The composition, scope, price, and availability period of each Course and Package are specified by the Contractor on the relevant page of the Site and determined at the time of placing the order. For the Package with Feedback, the number and duration of Individual Consultations and the period during which the User may use them are additionally specified. This information is brought to the User's attention before payment. The access period for Course materials is determined by clause 2.6 of this Offer.
- 2.4. Access to the Course is granted to the User automatically no later than 6 (six) hours after successful payment through the Payment Service by sending a link and/or login credentials for the Personal Account to the e-mail address specified by the User. If within the specified period the User has not received the relevant message or cannot access the purchased Course, they may contact the Contractor using the contact details provided in this Offer to resolve the issue.
- 2.5. The Contractor's obligation regarding the initial provision of access to the Course materials is deemed fulfilled from the moment the User is given the ability to access the purchased materials through the Personal Account and is sent the data necessary for this. At the same time, the Contractor retains the obligation to ensure access for the period specified in clause 2.6 of this Offer. Individual Consultations are deemed provided after they are actually conducted to the extent provided for by the selected Package. The mere non-use by the User of duly granted access does not indicate a failure by the Contractor to perform its obligations and does not limit the User's statutory rights.
- 2.6. Access is granted for the period specified in the description of the relevant Package on the Site. If the Package description states "unlimited" or "lifetime" access, such access is granted for the entire duration of the Site's existence and/or the Contractor's conduct of this commercial activity, but for no less than 12 (twelve) months from the date of payment.
- 2.7. Within the Package with Feedback, the Author agrees on the date and time of the Individual Consultation with the User on an individual basis.

III. COST OF SERVICES, PAYMENT PROCEDURE

- 3.1. The price of the Course within the selected Package is specified by the Contractor on the relevant page of the Site in euros (EUR) and/or US dollars (USD). For certain language versions of the Site, the price may be specified in hryvnias (UAH).
- 3.2. Payment is made by the User in full in advance through the WayForPay Payment Service or another payment service connected on the Site. Conversion into the settlement currency, if applicable, is carried out by the Payment Service at its exchange rate at the time of payment; the Contractor is not a party to such conversion and is not liable for any related exchange rate differences.
- 3.3. The price of the service is specified exclusive of fees charged by the payment service, the User's card-issuing bank, or other intermediaries, which may be charged additionally in accordance with the terms of such third parties and are not controlled by the Contractor.
- 3.4. The Contractor has the right to unilaterally change the prices of Courses with respect to future orders. Such changes do not affect the price of Courses already paid for by the User.

IV. RIGHT TO WITHDRAW FROM THE AGREEMENT AND REFUNDS

- 4.1. Since the subject matter of this Agreement is the provision of digital content and services that are not supplied on a tangible medium, and access to the Course is granted automatically after payment, the User, by making payment for the selected Package, gives prior express consent to the immediate provision of the service and unreservedly acknowledges that they thereby lose the right to withdraw from the Agreement in respect of the digital content provided.
- 4.2. A refund of amounts paid for the selected Package is an exceptional measure and is made only if access to the Course was not granted to the User due to a technical reason on the part of the Contractor or the Payment Service, and this reason was not remedied by the Contractor within a reasonable period after the User's request.
- 4.3. If, after paying for the Package with Feedback, the User has requested that an Individual Consultation be scheduled, and the Author has not made contact to agree on the date and time within 7 (seven) business days, the User has the right, within 14 days from the expiry of this period, to demand a full refund of the amounts paid. By requesting a consultation date, the User gives prior express consent to the commencement of provision of this service before the expiry of the withdrawal period and confirms that, once it has been fully provided, they lose the right to withdraw from the Agreement in this respect. If the Agreement is withdrawn from before the consultation has been fully provided, the User shall pay the Contractor an amount proportional to the part of the service actually provided.
- 4.4. In other cases, including the User's voluntary refusal to continue using the Course, the funds are not refundable, since the service is deemed to have been provided in full from the moment access to the Course materials is granted.
- 4.5. To obtain a refund in accordance with clauses 4.2 and 4.3 of this Offer, the User shall send a request to the e-mail address support@motophd.com, specifying information sufficient to identify the order and payment. Where the grounds provided for by this Offer or by law exist, refunds are made using the same method by which payment was made, within 14 banking days from the moment the Contractor grants the relevant request.
- 4.6. The provisions of this Section do not limit or revoke other consumer rights that are mandatory (i.e., that cannot be excluded or limited by the Agreement) under the legislation of the country of the User's permanent residence.

V. RIGHTS AND OBLIGATIONS OF THE PARTIES

- 5.1. The Contractor is obliged to provide the User with access to the Course and to ensure the organization of Individual Consultations by the Author, if provided for by the selected Package, to the extent and under the conditions specified in Section II of this Offer, and to ensure the technical availability of the Site, except during scheduled maintenance and in cases of force majeure.
- 5.2. The Contractor has the right to change the structure and content of the Course, provided its substantive value and compliance with the

description under which the Course was purchased are preserved, and to engage the Author to conduct Individual Consultations.

- 5.3.** The User is obliged to provide accurate data when placing an order, necessary for granting access and identifying the User, and to notify the Contractor of changes to the contact details necessary for the performance of the Agreement.
- 5.4.** The User is prohibited from transferring the access granted to them to the Personal Account to third parties in any form, including transferring login credentials or individual access links. The User is obliged to keep login credentials confidential and to promptly notify the Contractor of any detected unauthorized access to their Personal Account.
- 5.5.** The User is prohibited from copying, reproducing, distributing, or otherwise transferring the Course materials to third parties in any form or by any means.
- 5.6.** The Contractor has the right to unilaterally suspend or terminate the User's access to the Course without refunding the amounts paid in the event of a breach of the prohibitions established by clauses 5.4 and 5.5 of this Offer.

VI. INTELLECTUAL PROPERTY

- 6.1.** All Course materials (digital content, video lessons, PDF guides, other text and graphic materials) are protected by copyright and related rights legislation. The property rights to them belong to the Author and/or other rights holders. The Contractor uses the Course materials on the basis of a license agreement with the Author, which ensures the existence of the rights and permissions necessary for their use within the scope of this Offer.
- 6.2.** Granting access to the Course does not entail the alienation to the User of any intellectual property rights to the Course materials. The User is granted a limited, personal, non-exclusive, and non-transferable right to use the Course materials solely for their own review during the access period.
- 6.3.** Any commercial use, reproduction, distribution, or public communication of the Course materials without the Contractor's prior written consent is prohibited.
- 6.4.** If facts of unauthorized distribution, copying, or public communication of the Course materials or transfer of access to third parties are discovered, the User is obliged to pay the Contractor a penalty of EUR 500 (five hundred) (or the equivalent in hryvnias at the NBU exchange rate on the day the demand is made) for each instance of violation, within 5 (five) business days from the date the Contractor sends the relevant demand. Payment of the penalty does not release the User from compensating for losses that exceed the amount of the penalty.

VII. LIMITATION OF LIABILITY

- 7.1.** The Courses are aimed at improving the motorcycle riding skills of persons who already possess basic riding skills, and do not replace the official training required to obtain a driver's license of the relevant category.
- 7.2.** The Contractor and the Author do not guarantee that the User will achieve any specific individual result, including the acquisition of particular skills, avoidance of traffic accidents, etc. The result depends solely on the individual physical characteristics, training, caution, and decisions of the User.
- 7.3.** By placing an order, the User confirms that they understand and fully realize all risks associated with riding a motorcycle, including the risk of injury or death, independently decides on the practical application of the knowledge gained, and bears full and sole responsibility for any actions taken during or after completing the Course, as well as for harm caused to themselves, third parties, or property as a result of riding a motorcycle. The User is obliged to comply with applicable traffic rules and safety requirements, use appropriate protective gear, and not perform exercises in conditions that create danger to themselves or others.
- 7.4.** The Contractor's aggregate liability under this Agreement is limited to the amount actually paid by the User for the relevant Course, except in cases where limitation of liability is not permitted by mandatory provisions of applicable law.
- 7.5.** The Contractor is not liable for temporary unavailability of the Site or the Personal Account caused by malfunctions in communication networks or other third parties beyond the Contractor's control, or in the event of force majeure circumstances that the Contractor could not have foreseen or prevented by reasonable measures.

VIII. PERSONAL DATA

- 8.1.** The Contractor processes the User's personal data in accordance with the Law of Ukraine "On Personal Data Protection" and, in cases where Regulation (EU) 2016/679 (GDPR) applies, in accordance with its provisions. Processing is carried out to the extent necessary for the conclusion and performance of the Agreement, the fulfillment of the Contractor's statutory obligations, and for other purposes on the relevant legal grounds specified in the Privacy Policy.
- 8.2.** The owner (controller) of personal data is the Contractor.
- 8.3.** Detailed terms regarding the collection, processing, and storage of personal data, as well as mechanisms for exercising the User's rights, are set out in a separate Privacy Policy published on the Site, which is an integral part of this Offer.

IX. DISPUTE RESOLUTION PROCEDURE, APPLICABLE LAW AND JURISDICTION

- 9.1.** In the event of disputes or claims, the User has the right to contact the Contractor by the means specified in the "Contractor's Details" section. The Contractor reviews requests and provides a response within a reasonable period not exceeding 7 (seven) business days from the receipt of the request.
- 9.2.** This Offer and the relations of the parties are governed by the legislation of Ukraine, without prejudice to the mandatory provisions of consumer protection legislation of the country of the User's permanent residence, where the application of such provisions is mandatory under applicable private international law.
- 9.3.** Disputes that cannot be resolved through negotiations shall be submitted to the courts of Ukraine at the location of the Contractor, without prejudice to the right of a User-consumer who is a resident of the European Union to apply to the court of their place of permanent residence, if such right is granted to them by mandatory provisions of applicable law.
- 9.4.** The parties recognize as proper and written evidence in court: the electronic logs of the Contractor's and Payment Service's servers, which record the date, time, IP address, the fact of checkbox activation, and the fact of payment; and messages sent to the parties' e-mail addresses.

CONTRACTOR'S DETAILS

Individual entrepreneur Volodymyr Viktorovych Bilyi

Taxpayer registration card No.: 2469416512

Address: Ukraine, 04114, Kyiv, Lytovskiy Ave., bldg. 8a, apt. 5

Contact for inquiries and claims: support@motophd.com

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